

23SMCV03134 23SMCV03134

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This is a motion by defendant to declare plaintiff a vexatious litigant. The court is inclined to DENY the motion. The motion is governed by CCP section 391. There are three bases upon which a party can be declared vexatious. One is that within the last 7 years the party has filed a lawsuit that failed and did so as a self-represented litigant or has unjustifiably allowed a case to remain pending for two years without a trial. The second way is where a litigant has attempted to relitigate an issue that has been finally determined, again as a self-represented party. The third is where a self-represented litigant has repeatedly filed unmeritorious motions or papers or engages in tactics that are frivolous.

The court does not believe that the first option works. Most of the five actions defendant claims count have not been finally determined against plaintiff in the prior seven year period. And in some of them plaintiff was represented by counsel.

(Plaintiff was represented by counsel in the instant case all the way through judgment.) The second option is also not the one upon which the court relies.

Again, finality is required and plaintiff must be unrepresented. But again, in many of the cases cited plaintiff was represented by counsel. That leaves the third option. And the court thinks that defendant has made the point there.

The case before the court involves a "Kashet." Plaintiff sued to force defendant to open it, presumably because plaintiff believed he was entitled to some of the jewels he thinks are inside. The court ultimately ruled for defendant on the claim, finding that the issue had been fully and

finally adjudicated in other fora. On appeal, the Court of Appeal agreed, finding that the matter had been adjudicated—and more than once. After the Supreme Court denied review, a remittitur was issued affirming the court's judgment. That ought to be the end of this case. But plaintiff now seeks to set that judgment aside. Defendant claims that this is precisely the kind of motion that the statute seeks to prevent. Defendant also points to motions in other cases, including motions to grant relief from deadlines to file discovery motions, motions to add the Kashet issue to other cases, and motions for reconsideration of motions previously denied. The fact is that this is somewhat of a close call. The court has some concern that unless the motion is granted, plaintiff will just keep suing over this issue even though the issue has been adjudicated. The court notes that this prong of the test does not require a specific time frame or a specific number of motions or actions. Rather, the resolution of that is in the court's discretion. (*Morton v. Wagner* (2007) 156 Cal.App.4th 963.) There is no bright line rule on this ground, but the court here looks to the totality of the circumstances. (*Id.*) And to find a litigant vexatious, the court should conclude that the litigant's actions are unreasonably hampering the objects of the other party's actions and the courts as contemplated by the statute. (*Goodrich v. Sierra Vista Regional Medical Center* (2016) 246 Cal.App.4th 1260.) The court believes that plaintiff believes that his cause is just. But a finding of vexatiousness does not require bad faith or ill motive. It only requires that a party will not stop re-litigating matters that have already been decided or filing motions or actions that lack merit. On the other hand, the court is also aware that defendant has kicked the proverbial hornet's nest and has brought his own action against plaintiff. The court is not saying defendant's action is improper or bad faith; it is just that when one kicks a hornet's nest, one cannot complain too loudly about being stung. On balance, the court believes that it is better to err on the side of denying the motion than of granting it, and, accordingly, the motion is DENIED.

The court had also continued the motion to vacate the judgment to this date. While the court's original intention was to continue that motion further, little purpose would be served in doing so. Nor would there be

any real advantage to anyone to require the pre-filing requirement to kick in with regard to this already-filed motion.

Therefore, the court will exercise its discretion to consider the motion on the merits unless defendant objects on the ground that defendant has been denied the opportunity to file an opposition.

To the extent that the motion is predicated on the judgment being void, the court sees no extrinsic fraud or mistake. Extrinsic fraud occurs where the other side is deprived of an opportunity to present the claim in court, such as being given the wrong hearing date such that the party did not appear at the hearing, the concealment of a community property asset so that it could not be divided during a dissolution, or convincing the other side that there is no need to retain counsel because the case will be dismissed but then not dismissing it. The point is that one party has to have prevented the losing party of having a day in court. (Navarro v. IHOP Properties, Inc. (2005) 134 Cal.App.4th 834.) Intrinsic fraud, on the other hand, occurs where there has been an opportunity to present the case, but the case just went the other way. That can happen because the court gets it wrong, there are issues regarding discovery such that one party does not honestly comply with discovery requests, or even when a party presents an untrue declaration to the court upon which the court relies. The point is that when it goes to the merits of the case as opposed to the ability of a party even to participate, the fraud is almost always intrinsic. Extrinsic mistake usually appears in the case of a default—that is, the defendant just does not appear for some excusable reason and a default judgment is entered so there is never a merits ruling at all, such as a situation where the defaulted party was in the hospital and thus was never aware of the action even though service was proper. (Mechling v. Asbestos Defendants (2018) 29 Cal.App.5th 1241.)

The instant motion goes to the merits. Defendant's prior motions were properly noticed; plaintiff was properly served with them. Plaintiff had a full and fair opportunity to explain why it was that the case was not barred by prior proceedings and plaintiff was well represented by able counsel; it is just that the court did not agree. And plaintiff was not defaulted; plaintiff just lost. The court is sympathetic to plaintiff's health issues, but the court does not believe that the 2021 issue is sufficient to undo a judgment entered in 2024.

It is possible that the courts got the merits wrong. Courts are not infallible. Judges—and appellate justices—are drawn from the human race. Sometimes, there are mistakes. But the notion of justice is not that it will be perfect; it is that it will be fair and unbiased. The court is confident that the proceedings here were fair and unbiased. Accordingly, the motion to vacate the judgment is DENIED.

One last thing.

Although the court denied the vexatious litigant motion, that is on the assumption that plaintiff now gets the message.

The Kashet issue is over and done.

Another attempt to relitigate that question will, at least in this court's mind, likely suggest that the court erred in denying the instant vexatious litigant motion and the court is unlikely to make the same mistake again.